

Opinion of the Court

nity under § 1983.” *Id.*, at 424. Those considerations⁴ supported a rule of absolute immunity for conduct of prosecutors that was “intimately associated with the judicial phase of the criminal process.” *Id.*, at 430. In concluding that “in initiating a prosecution and in presenting the State’s case, the prosecutor is immune from a civil suit for damages under § 1983,” we did not attempt to describe the line between a prosecutor’s acts in preparing for those functions, some of which would be absolutely immune, and his acts of investigation or “administration,” which would not. *Id.*, at 431, and n. 33.

We applied the *Imbler* analysis two Terms ago in *Burns v. Reed*, 500 U. S. 478 (1991). There the § 1983 suit challenged two acts by a prosecutor: (1) giving legal advice to the police on the propriety of hypnotizing a suspect and on whether probable cause existed to arrest that suspect, and (2) participating in a probable-cause hearing. We held that only the latter was entitled to absolute immunity. Immunity for that action under § 1983 accorded with the common-law absolute immunity of prosecutors and other attorneys for eliciting false or defamatory testimony from witnesses or for making false or defamatory statements during, and related to, judicial proceedings. *Id.*, at 489–490; *id.*, at 501 (SCALIA, J., concurring in judgment in part and dissenting in

⁴In particular, we expressed concern that fear of potential liability would undermine a prosecutor’s performance of his duties by forcing him to consider his own potential liability when making prosecutorial decisions and by diverting his “energy and attention . . . from the pressing duty of enforcing the criminal law.” *Imbler v. Pachtman*, 424 U. S., at 424–425. Suits against prosecutors would devolve into “a virtual retrial of the criminal offense of a new forum,” *id.*, at 425, and would undermine the vigorous enforcement of the law by providing a prosecutor an incentive not “to go forward with a close case where an acquittal likely would trigger a suit against him for damages,” *id.*, at 426, and n. 24. We also expressed concern that the availability of a damages action might cause judges to be reluctant to award relief to convicted defendants in post-trial motions. *Id.*, at 427.